

26NNCV03173 26NNCV03173

County: los-angeles

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Case Number: 26NNCV03173 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION TO COMPEL ARBITRATION AND APPOINT ARBITRATOR

Los

Angeles Superior Court Case # 26NNCV03173

MP: Plaintiff/Petitioner

Nadeza Mikhaylova/ Petitioner Behnaz Ghaffari Manjili

RP: Defendant/Respondent

North Light Specialty Insurance Company

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

On April 23, 2026,

Nadeza Mikhaylova ("Plaintiff") filed a Complaint against United Financial Casualty Company, Allstate Insurance Company, and Does 1-20 ("Defendants") for:

(1) Motor Vehicle Negligence; and (2) General Negligence. On December 25, 2021, Plaintiff and Defendants were involved in a motor vehicle collision which caused resulted in personal injury.

On April 30, 2026,

Plaintiff amended the Complaint, naming North Light Specialty Insurance Company as Doe 1 ("North").

RELEVANT BACKGROUND

AND MOTION ON CALENDAR:

On May 19, 2026, Plaintiff

filed the first Motion to Compel Arbitration and Appoint an Arbitrator, which United Financial Casualty Company ("UFCC") opposed on July 17, 2026. On July 31, 2026, the Court denied Plaintiff's motion without prejudice.

On April 30, 2026, Plaintiff filed this instant Petition to

Compel Arbitration and Appoint an Arbitrator (reservation no. 809545439696), regarding "Petitioner BEHNAZ GHAFARI MANJILI" against "UNITED STATES FIRE INSURANCE COMPANY" with a Declaration Page naming Nadeza Mikhaylova. On August 10, 2026, North filed an opposition.

LEGAL STANDARD:

"The statutory requirement for

arbitration of uninsured motorist claims is found in [Insurance Code] subdivision (f) of section 11580.2, which states: 'The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. ...' [¶] Cases which have analyzed and construed this section have pointed out that the word 'damages' in this section means the damages which the insured is entitled to recover from the uninsured motorist, and that

the statute, read literally, requires arbitration of two issues only: (1) whether the insured is entitled to recover against the uninsured motorist and (2) if so, the amount of the damages."

(Freeman v. State Farm Mut. Auto. Ins. Co. (1975) 14

Cal.3d 473, 480.) Pursuant to section

11580.2(f): (1)

arbitration of issues other than liability and damages is appropriate if the parties have contractually agreed to arbitrate more than is required by section 11580.2(f); and, (2) only issues of liability and damages may be decided in an arbitral forum if the parties did not agree to arbitrate more than is required by section 11580.2(f). (Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1197.)

"Questions of

coverage—that is, whether the claimant is insured and therefore entitled to take advantage of the protection provided by the policy at issue—must be resolved before an arbitrator reaches the two arbitrable questions pursuant to section 11580.2, subdivision (f). Here, the policy acknowledges as much, providing that 'arbitration ... shall not address any other issues, including but not limited to, coverage questions.' Coverage questions fall outside of the two issues necessarily arbitrable under section 11580.2, subdivision (f), and must therefore be decided by a court, not an arbitrator, if the parties have not agreed to arbitrate more than the statute requires." (Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1201.)

ANALYSIS:

"Petitioner BEHNAZ GHAFARI MANJILI" seeks to compel arbitration against "Respondent UNITED STATES FIRE INSURANCE COMPANY" pursuant to Insurance Code, § 11580.2(f). (See Pet. at p.1.)

The Court notes that there is neither a Plaintiff named Behnaz Ghaffari Manjili nor a Defendant named United States Fire Insurance Company in this action. It appears that this petition was mistakenly filed as, noted above, Plaintiff already filed a motion to compel arbitration against UFCC (a defendant in this action) on May 19, 2026, which was denied on July 31, 2026.

In opposition, North addresses the background of Plaintiff's attempts to initiate arbitration and the merits of the petition. However, as the petition is not properly

noticed nor involves the parties in this action, the Court declines to address the substantive merits of the petition.

As the named/claimed Petitioner and Respondent are not parties to this action, the Court takes this petition off-calendar.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Nadeza

Mikhaylova/Petitioner Behnaz Ghaffari Manjili's Petition to Compel Arbitration and Appoint an Arbitrator came on regularly for hearing on August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

PETITION TO COMPEL ARBITRATION AND APPOINT AN ARBITRATOR IS TAKEN OFF-CALENDAR.

DEFENDANT

NORTH LIGHT SPECIALITY INSURANCE COMPANY
TO GIVE NOTICE.

IT IS SO ORDERED.